

Serious Incident Report no. 12403/2021

Report date and time (UTC)	2021-07-04 [REDACTED] Sensitive operational information x2
Last modification date and time (UTC)	2021-12-28 [REDACTED]
Reporting entity/function	[REDACTED] Reporting tools
SIR Status	Closed
Workflow Status	Processed
SIR Category	1 - Situations of potential violations of Fundamental Rights or international protection obligations 3 - Situations with serious actual or potential negative implications on Frontex core tasks
Subject	FSA sighting in Central Med - shipwreck off Tunisia, 43 migrants allegedly drowned
Joint operation	FSC Aerial Surveillance 2021
[REDACTED] incident number	Reporting tools
Original source of information	FSA
FX SI Handler	HoO.FRO
Frontex resources involved	Yes
Use of force	No
Incident dates (UTC)	2021-07-02 [REDACTED] Sensitive operational information
Location of the incident	Tunisi, - , Tunisia
Latitude	34.000000
Longitude	9.000000
Location details	Tunisia SRR
Reference to the operational area	No
Type of resources / involvement	Frontex Surveillance Aircraft [REDACTED] Technical equipment
Dead persons	43
Injured persons	
Missing persons	

Details

[Reporting tools](#)

Sensitive operational information Technical equipment Human resources Information/Allegations	Frontex Surveillance Aircraft (FSA) [REDACTED] On 2 July, [REDACTED] detected a boat, with approximately 100 people on board (POB), in the vicinity of the point 33°21'31"N 011°31'12"E which is located in the Tunisian Search and Rescue Region (SRR). This was the first detection of the FSA during the flight. Due to the fact that the boat was located inside Tunisian Flight Information Region, it was not possible for [REDACTED] to go closer and get better pictures in order for the [REDACTED] to assess accurately the characteristics of the boat, POB, etc. The boat was presumed to be wooden, red/brown coloured. It was not visible if people on board had lifejackets or not, nor if there were supplies (fuel/water/food). No persons could be seen in the water. Additionally, the boat most probably had one engine, heading to North-East with varying course -the helmsman was not maintaining a constant direction- and a speed of around 4 knots. The course indicated the possible place of departure was Al Marsa / Zarsis area, whereas, Lampedusa as a possible destination was in a long distance (around 136 nautical miles away). The closest shore (Tunisia), at that time, was around 8 nautical miles away.
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Sensitive operational information Human resources Human resources Human resources Human resources Reporting tools Human resources	Weather conditions were good (sea state 2) and the forecast for the next 24 hours was similar. No vessels could be observed in the vicinity of the sighting. Human resources The above-mentioned information was sent by [REDACTED] to Tunisian competent authorities via email at around [REDACTED], as well as to the Libyan, Maltese and Italian authorities in carbon copy (cc) for their awareness, hence all the national authorities were informed about this case. Moreover, [REDACTED] tried to contact Tunisian MRCC on the phone without success. Technical equipment After 20 minutes of flight in the above area, [REDACTED] proceeded North, inspecting other targets. Technical equipment [REDACTED] requested by [REDACTED] crew, before returning to base, to extend the flight in order to relocate the mentioned boat. Due to Malta Air Traffic Control constrains and planned inspection on the airframe the extension was not possible. In addition to the above, the [REDACTED] [REDACTED] informed [REDACTED] that a Maltese aircraft would search again the area. Eventually they were unsuccessful in finding the boat. On 3 July afternoon, Tunisian Red Crescent informed the media about a shipwreck off Tunisia with at least 43 migrants drowned and another 84 rescued and transferred to port of Zarzis. The boat had allegedly set off from Zuwara, on Libya's North-Western coast, carrying migrants from Egypt, Sudan, Eritrea and Bangladesh. Media links: 1) https://www.reuters.com/world/middle-east/least-43-migrants-drown-shipwreck-off-tunisia-red-crescent-says-2021-07-03/ 2) https://www.independent.co.uk/news/world/africa/tunisia-migrants-drown-shipwreck-libya-italy-b1877585.html Reporting tools By that time, [REDACTED] had not received any information regarding the outcome of the sighted boat on 2 July. [REDACTED] could not correlate the two incidents. A relevant message (Flash News report) was sent to Frontex stakeholders for their awareness. Human resources On 4 July morning hours, the [REDACTED] informed the [REDACTED] that the sighting and the shipwreck referred to the same case. Due to this fact, it was decided that a SIR should be launched.
Technical equipment Measures/Actions taken Human resources Technical equipment	1) Due to the fact that the boat was located inside Tunisian Flight Information Region (FIR), it was not possible for [REDACTED] to go closer and get better pictures in order for the [REDACTED] to assess accurately the characteristics of the boat, POB, etc. Human resources x2 2) [REDACTED] promptly informed Tunisian competent authorities via email, as well as to the Libyan, Maltese and Italian authorities in carbon copy (cc) for their awareness, hence all the national authorities were informed about this case. 3) [REDACTED] tried to contact Tunisian MRCC on the phone without success. 4) No distress calls were relayed as the migrants' boat was not in imminent danger (sea condition was good, forecasted weather was also good). 5) On 3 July, FSA [REDACTED] performed a flight, during which 6 boats with 224 migrants were detected, but the specific boat was not sighted again.
Assessment Modus operandi of law enforcement	According to the Italian Authorities the sighting is correlated with the shipwreck incident. Technical equipment 1. FSA [REDACTED], [REDACTED] [REDACTED] Based on international law, it cannot enter any territorial

Human resources	airspace and/or controlled airspace of another coastal state. 2. ██████████ made all efforts to inform the relevant authorities about the sighting. 3. The incident happened in the territorial waters of Tunisia. No EU Member State exercises state jurisdiction and control over that area.
Personal Data	
Final Report	
Key points	
Description of the event - Timeline	
Information collected - Contributors/Entities consulted - Follow-up	
Assessment	
Final conclusion - Proposals - Lessons learned	The gathered data and information presented in this Final Report led to the conclusion that Frontex took all steps possible within its remit in relation to the incident concerned. The event was not caused by an action or failure to act by Frontex participants or assets. In order to access any supplementary information or assessment from the respective national authorities, FRO requested the Italian and Maltese authorities to provide any further information on the reported matter (as above-mentioned). Taking into consideration all collected evidence received from the respective national authorities, Frontex internal entities and the media sources, FRO suggests the present SIR to be closed. Based on the gathered and available information no potential violation of EU or international law related to fundamental rights and international protection obligations can be established at this stage.

Out of scope of the application